

Johnson v. Smith Final Judgment

CASE NO: CIV-2025-00412. IN THE SUPERIOR COURT OF CALIFORNIA, COUNTY OF SAN FRANCISCO.

JOHN JOHNSON, Plaintiff, v. ALICE SMITH, Defendant.

DECISION AND FINAL JUDGMENT

FACTUAL BACKGROUND: On January 10, 2025, the Plaintiff, John Johnson, entered into a written agreement with the Defendant, Alice Smith, for the development and delivery of 500 units of custom database software servers. Under the terms of the contract, delivery was to be completed in full no later than June 1, 2025. The contract price was agreed to be \$150,000, with the Plaintiff providing a deposit payment of \$50,000 upon execution of the agreement.

BREACH OF CONTRACT ANALYSIS: The Defendant, Alice Smith, failed to deliver any of the agreed-upon software servers by June 1, 2025. Despite multiple demands and warnings from the Plaintiff, the Defendant did not provide the goods, citing unexpected technical development difficulties. The court finds that the Defendant's failure to perform represents a material breach of contract, as the delivery date was a critical and essential term of the agreement.

VERDICT: Upon review of the evidence, the court finds in favor of the Plaintiff, John Johnson, on the claim of breach of contract.

DAMAGES AWARDED: The Plaintiff is entitled to recover damages resulting from the breach. The court hereby awards the Plaintiff damages in the total amount of \$75,000. This sum represents the return of the original \$50,000 deposit payment plus an additional \$25,000 in consequential damages to compensate for the business losses incurred due to the operational delay.

IT IS SO ORDERED. Dated: June 20, 2025.